

Opinion of KENNEDY, J.

F. 2d 1230, 1244 (CA7 1990), vacated and remanded, 502 U. S. 801 (1991).

JUSTICE KENNEDY, with whom THE CHIEF JUSTICE, JUSTICE WHITE, and JUSTICE SOUTER join, concurring in part and dissenting in part.

I agree there is no absolute immunity for statements made during a press conference. But I am unable to agree with the Court's conclusion that respondents are not entitled to absolute immunity on petitioner's claim that they conspired to manufacture false evidence linking petitioner to the boot-print found on the front door of Jeanine Nicarico's home. I join Parts I, II, III, and IV-B of the Court's opinion, but dissent from Part IV-A.

I

As the Court is correct to observe, the rules determining whether particular actions of government officials are entitled to immunity have their origin in historical practice and have resulted in a functional approach. *Ante*, at 267–268. See also *Burns v. Reed*, 500 U. S. 478, 484–486 (1991); *Forrester v. White*, 484 U. S. 219, 224 (1988); *Malley v. Briggs*, 475 U. S. 335, 342–343 (1986); *Cleavinger v. Saxner*, 474 U. S. 193, 201 (1985); *Briscoe v. LaHue*, 460 U. S. 325, 342 (1983); *Harlow v. Fitzgerald*, 457 U. S. 800, 810 (1982); *Butz v. Economou*, 438 U. S. 478, 511–513 (1978); *Imbler v. Pachtman*, 424 U. S. 409, 420–425 (1976). I share the Court's unwillingness to accept Buckley's argument "that *Imbler*'s protection for a prosecutor's conduct 'in initiating a prosecution and in presenting the State's case,' 424 U. S., at 431, extends only to the act of initiation itself and to conduct occurring in the courtroom." *Ante*, at 272. In *Imbler*, we acknowledged that "the duties of the prosecutor in his role as advocate for the State involve actions preliminary to the initiation of a prosecution and actions apart from the courtroom," and we explained that these actions of the prosecutor, undertaken in